IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR.JUSTICE C. JAYACHANDRAN

TUESDAY, THE 16TH DAY OF JANUARY 2024 / 26TH POUSHA, 1945

OP(C) NO. 2354 OF 2023

PETITIONER(S)/CLAIMANT:

M/S BISMI CASHEW COMPANY
AGED 44 YEARS
MANGAD P.O,KILIKOLLOOR ,KOLLAM
REPRESENTED BY ITS MANAGING PARTNER AND AUTHORIZED SIGNATORY,
SHRI. SHIYAS HUSSAIN AGED 44, S/O AHAMED HUSSAIN,
TANAL, KARICODU ,KILIKOLLOOR,
KOLLAM, PIN - 691015

BY ADV
ARUN BABU

RESPONDENT(S)/RESPONDENTS:

1 *M/S VITTAL IMPEX*
NEAR LFGHS SCHOOL,HOSDURG, KANHANGAD 671315
ADMINISTRATIVE OFFICE AT GAJANANA CHAMBERS,
NEAR SAI MANDIR, HOSDURG, KANHANGAD -
REPRESENTED BY ITS MANAGING PARTNER MR.GANESH KAMATH,
PIN - 671315

2 *GANESH KAMATH*
MANAGING PARTNER M/S VITTAL IMPEX,
NEAR LFGHS SCHOOL, HOSDURG, KANHANGAD, PIN - 671315

BY ADV
JAWAHAR JOSE

THIS OP (CIVIL) HAVING BEEN FINALLY HEARD ON 16.01.2024, ALONG WITH OP(C).2106/2023, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR.JUSTICE C. JAYACHANDRAN

TUESDAY, THE 16TH DAY OF JANUARY 2024 / 26TH POUSHA, 1945

OP(C) NO. 2106 OF 2023

PETITIONER/CLAIMANT:

M/S CROWN CASHEW IMPEX PVT LTD
MANGAD P.O,KILIKOLLOOR ,KOLLAM
REPRESENTED BY ITS MANAGING DIRECTOR AND
AUTHORIZED SIGNATORY,
SHRI. SHIYAS HUSSAIN, AGED 44,
S/O AHAMED HUSSAIN, TANAL,
KARICODU ,KILIKOLLOOR,KOLLAM, PIN - 691015

BY ADV
ARUN BABU

RESPONDENTS/RESPONDNETS:

1 *M/S VITTAL IMPEX,*
NEAR LFGHS SCHOOL,HOSDURG,
KANHANGAD ADMINISTRATIVE OFFICE AT GAJANANA
CHAMBERS ,NEAR SAI MANDIR, HOSDURG,
KANHANGAD - 671315
REPRESENTED BY ITS MANAGING PARTNER
MR.GANESH KAMATH,

2 *GANESH KAMATH*
MANAGING PARTNER M/S VITTAL IMPEX,
NEAR LFGHS SCHOOL,HOSDURG, KANHANGAD,
PIN - 671315

BY ADV JAWAHAR JOSE

THIS OP (CIVIL) HAVING BEEN FINALLY HEARD ON 16.01.2024, ALONG WITH OP(C).2354/2023, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

JUDGMENT

[OP(C) Nos.2354/2023, 2106/2023]

In both these Original Petitions, orders of the arbitrator, exhibited as P2, are under challenge, which closed the proceedings, holding that the arbitration is not maintainable for the reason that the arbitration agreement is not duly stamped. The learned arbitrator relied upon a Five Judges Bench of the Honourable Supreme Court to hold so.

2. Now, learned counsel appearing for the petitioners, as also the respondents, would submit that the said Five Judges Bench decision of the Honourable Supreme Court has been overruled by a Seven Judges Bench, which held that the arbitration agreement is not *per se* void, for the reason that it is insufficiently stamped; instead the deficiency in the stamp duty can be cured.

In view of the common submission made by the counsel for the petitioners and the respondents, Ext.P2 order in both these Original Petitions will stand set aside. The matter will stand remitted to the arbitrator for proceeding with the matter, in accordance with law.

Sd/-
C. JAYACHANDRAN
JUDGE

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APPENDIX OF OP(C) 2106/2023

PETITIONER EXHIBITS

EXHIBIT P1	*THE TRUE COPY OF THE CONTRACT A CONTRACT BEARING NO VI/HS/07/19-20 DATED 02.10.2019*
EXHIBIT P2	*THE TRUE COPY OF THE ORDER DATED 13/07/2023 IN OP 1/2022 BY THE SOLE ARBITRATOR*
EXHIBIT P3	*THE TRUE COPY OF THE ORDER DATED 13/07/2023 IN IA 14/2023 IN OP 1/2022 BY THE SOLE ARBITRATOR*
EXHIBIT P4	*THE TRUE COPY OF THE STATEMENT OF FACT SUBMITTED BY THE PETITIONER, DATED 18/03/2022 IN OP 1/2022 BEFORE THE SOLE ARBITRATOR*
EXHIBIT P5	*THE TRUE COPY OF THE WRITTEN STATEMENT DATED 25-05-2022 SUBMITTED BY THE RESPONDENT IN AR 71/2020 BEFORE THE SOLE ARBITRATOR*
EXHIBIT 6	*THE TRUE COPY OF IA 14/2023, DATED 2-06-2023 FILED BY THE RESPONDENT IN OP 1/2022 BEFORE THE SOLE ARBITRATOR*

APPENDIX OF OP(C) 2354/2023

PETITIONER EXHIBITS

EXHIBITP 1	*THE TRUE COPY OF THE CONTRACT A CONTRACT BEARING NO VI/HS/06/19-20 DATED 02.10.2019*
EXHIBIT P2	*THE TRUE COPY OF THE ORDER DATED 13/07/2023 IN OP 2/2022 BY THE SOLE ARBITRATOR*
EXHIBIT P3	*THE TRUE COPY OF THE ORDER DATED 13/07/2023 IN IA 13/2023 IN OP 2/2022 BY THE SOLE ARBITRATOR*
EXHIBIT P4	*THE TRUE COPY OF THE STATEMENT OF FACT SUBMITTED BY THE PETITIONER , DATED 18/03/2022 BEFORE THE SOLE ARBITRATOR*
EXHIBITP 5	*THE TRUE COPY OF THE WRITTEN STATEMENT DATED 25-05-2022 SUBMITTED BY THE RESPONDENT IN AR 72/2020 BEFORE THE SOLE ARBITRATOR IS PRODUCED*
EXHIBIT P6	*THE TRUE COPY OF IA 13/2023, DATED 2-06-2023 FILED BY THE RESPONDENT IN OP 2/2022 BEFORE THE SOLE ARBITRATOR*